

20STCV29458 20STCV29458

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-07-09

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Case Number: 20STCV29458 Hearing Date: July 9, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

9, 2026

CASE NAME: Steven

Roth v. Richard M Behfarin, et al.

CASE NO.: 20STCV29458

MOTION

FOR PROTECTIVE ORDER

MOVING PARTY: Defendant

Richard M Behfarin

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. A

protective order concerning the appearance and examination of third parties

Nahid Behfarin and Jack Behfarin.

TENTATIVE RULING:

1. Motion

for protective order is DENIED as moot.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On May 30, 2025, the court issued its Judgment on Final Statement of Decision.

On July 21, 2025, Plaintiff filed a Notice of Entry of Judgment.

On July 24, 2025, Plaintiff filed a Memorandum of Costs.

On August 12, 2025, Defendant timely filed the instant Motion to Tax Costs which the court DENIED.

On February 5, 2026, Plaintiff filed applications and order for appearance and examination of third parties Jack Behfarin and Nahid Nazarian Behfarin which the court GRANTED.

On April 13, 2026, Defendant filed the instant motion for protective order on the third party examinations.

On April 13, 2026, the court continued the third party examinations from April 15, 2026 to April 24, 2026.

Oppositions to the motion for protective order were due on or before June 25, 2026. As of July 6, 2026, the court has not received any opposition.

LEGAL STANDARD:

“Upon ex parte application by a judgment creditor who has a money judgment and proof by the judgment creditor by affidavit or otherwise to the satisfaction of the proper court that a third person has possession or control of property in which the judgment debtor has an interest or is indebted to the judgment debtor in an amount exceeding two hundred fifty dollars (\$250), the court shall make an order directing the third

person to appear before the court, or before a referee appointed by the court, at a time and place specified in the order, to answer concerning such property or debt. The affidavit in support of the judgment creditor's application may be based on the affiant's information and belief."

(Code of Civ. Proc. (CCP) §
708.120(a).)

"In any proceeding under this article, the court may, on motion of the person to be examined or on its own motion, make such protective orders as justice may require." (CCP § 708.200.)

ANALYSIS:

Defendant moves for a protective order to allow third parties Jack Behfarin and Nahid Behfarin to participate in their appearance and third party examinations by declaration or to indefinitely suspend the examinations due to their age and lack of holding Judgment Creditor's property.

The court has not received any opposition.

Nonetheless, the motion is moot. On April 24, 2026, third parties Jack Behfarin and Nahid Behfarin appeared in court, were sworn in, and the ORAPS were discharged. (April 24, 2026 Minute Order.) The requested relief is therefore moot.[1]

Accordingly, the court DENIES the motion for protective order.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion for protective order is DENIED as moot.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 9, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

If it were not, Defendant lacks standing to request the relief sought. The statute requires the third parties to move for this relief. (CCP § 708.200.)